

ERASURE AFTER A NOLLE: THE THIRTEEN-MONTH CLOCK, AND THE MOTION THIS
PACKET DOES NOT GENERATE

For: Maria-Alejandra O'Shaughnessy-Whitfield

WORDS FIRST. Connecticut says ERASURE - not expungement, not sealing - and that is the word this page uses throughout.

THE TWO BRANCHES. Which one is yours turns on one answer you give from your own records, and this packet does not choose for you:

Was the charge NOLLED, or is it still being CONTINUED at the prosecutor's request?

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BRANCH ONE - THE CHARGE WAS NOLLED: AUTOMATIC ERASURE, NOTHING TO FILE.
Under C.G.S. Sec. 54-142a(c), where a charge has been nolleed, the police and court records and the records of any state's attorney pertaining to the charge SHALL be erased once THIRTEEN MONTHS have elapsed since the nolle. There is no application, no petition and no fee - Sec. 54-142a(k) provides that no court fee is charged in any court with respect to any petition under Sec. 54-142a - and you file nothing.

Your worksheet for this branch, filled from the Judicial Branch online case look-up, never from memory:
Date the charge was nolleed:

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The date thirteen months after that date (your own computation from the line above):

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HOW TO CONFIRM THE ERASURE HAPPENED. Look the case up on the Judicial Branch online case look-up after the thirteen months have run: an erased case will not appear. If the case still appears after the clock has plainly run, the record was not erased when it should have been - that is a different problem on a different route, and a lawyer or legal-aid office is where to take it. This packet does not obtain, receive or inspect your look-up.

OLDER NOLLES. Nolles entered before April 1, 1972 in the listed older courts are deemed erased by operation of law, and the arrested person or an heir may petition, in which case the records shall be erased.

BRANCH TWO - THE CHARGE IS STILL BEING CONTINUED: A MOTION RIGHT THIS PACKET DOES NOT GENERATE.

Under C.G.S. Sec. 54-142a(c)(2), where a charge was continued at the prosecutor's request and THIRTEEN MONTHS have passed with no prosecution or other disposition, the charge SHALL be nolleed upon motion of the arrested person, and erasure then follows the nolle rules. That motion is an affirmative filing you are entitled to make - and this packet does not generate it, because no form was located and the current caption, venue, service and clerk practice for the motion have not been approved.

A motion drafted against an unsettled vehicle could be refused at the counter or worse, so none is drafted here.

Your worksheet for this branch, from the case look-up:

Date the charge was continued at the prosecutor's request:

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Any prosecution or other disposition since that date (write NONE if none):

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If this branch is yours and the thirteen months have run, take this page and your look-up to the clerk of the Superior Court where the case is pending, or to a lawyer or legal-aid office: the clerk's office can say how that court takes a Sec. 54-142a(c)(2) motion today, and that is the question this packet cannot answer for you.

WHAT ERASURE MEANS. Sec. 54-142a(g)(2) states the legal effect of erasure. It is Connecticut's own remedy with Connecticut's own boundaries, and nothing on this page describes any effect on federal or out-of-state records.

WHEN TO STOP AND GET HELP

- you need the Sec. 54-142a(c)(2) motion - its filing vehicle is not settled, and the clerk or a lawyer is the path;
- the thirteen months have not yet elapsed on either branch;
- the record was not erased when it should have been;
- any immigration matter - any participant with an immigration matter goes to counsel.

Routes: obligation:unit:CT:ct-nolle-auto:ct-nolle-auto-branch-automatic-erasure |

obligation:unit:CT:ct-nolle-auto:ct-nolle-auto-branch-motion-to-nolle